

Slide 1



Today's Session

- Please ask questions using the text box at any time.
- Turn off email and other programmes that may distract you, your attention and participation is important.
- Please answer the poll questions throughout the session, this is required to receive certificate of attendance.
- A link to this presentation with notes will be sent to you for download.



Joe Boyle
EMA Health & Safety
Training Portfolio Manager



Welcome and Introductions:

- Introducing the presenters
- Intro to Webinars, the control panel, if you drop out use your link and come back in.
- Please ask questions using the text box at any time
- Turn off email and other programmes that may distract you, your attention and participation is important
- Please answer the poll questions throughout the session, this is required to receive certificate of attendance.
- A link to this presentation with notes will be sent to you for download.



What we will discuss today

- How are people being harmed (Statistics)
- Motivation for business and workers
- The HSWA and duty holder responsibilities
- Engagement, participation and representation

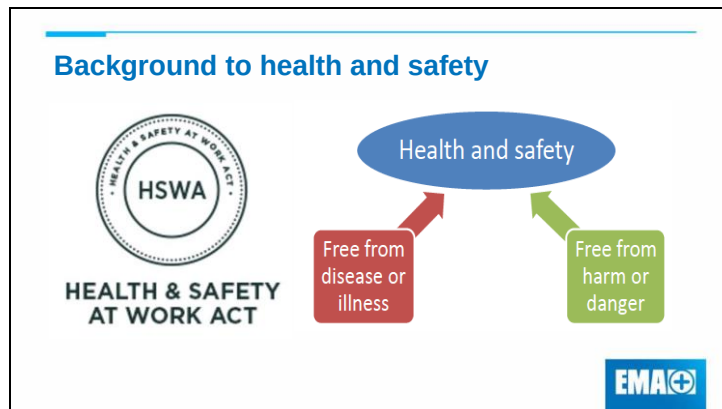


AGENDA

Introduction to Health and Safety for Employees:

- How are people being harmed in the NZ workplace.
- Motivation for business and people. Why should we take health and safety in the workplace seriously.
- The Health and Safety at Work Act (2015) and duty holder responsibilities – what is the Act about, who is WorkSafe New Zealand, who are PCBU, Officer and Workers, and what are their responsibilities.
- Engagement, Participation and Representation – A culture of safety, the role of H&S Representative and the worker in creating and maintaining a safe working environment.

LAUNCH POLL 1: “Have you had experience in Health and Safety?” – Single answer – Yes/No/Uncertain)



The Health and Safety at Work Act (HSWA) shifts the focus from monitoring and recording health and safety incidents to proactively identifying and managing risks so everyone is safe and healthy.

This might not necessarily mean major changes to your day-to-day operations, but it's the business's duty to think about who may be affected by its business. This includes all staff, contractors, customers and visitors. The business needs to engage workers in health and safety matters and implement effective participation practices to allow workers to contribute to health and safety on an ongoing basis.

Hazard and Risk Management



- A “**hazard**” means a situation or thing that has the potential to harm a person. Hazards in your business may include: noisy machinery, a moving forklift, chemicals, electricity, working at heights or a repetitive job at your workplace.
- A “**risk**” is the possibility that harm (death, injury or illness) might occur when exposed to a hazard in your workplace.



Hazard and Risk Management

A “**hazard**” means a situation or thing that has the potential to harm a person. Hazards in your business may include: noisy machinery, a moving forklift, chemicals, electricity, working at heights or a repetitive job at your workplace.

A “**risk**” is the possibility that harm (death, injury or illness) might occur when exposed to a hazard in your workplace.

“**Risk control**” means your business taking action to eliminate health and safety risks so far as is reasonably practicable, and if that is not possible, minimising the risks so far as is reasonably practicable. Eliminating a hazard will also eliminate any risks associated with that hazard in your workplace.



SECTION 1: How are people being harmed

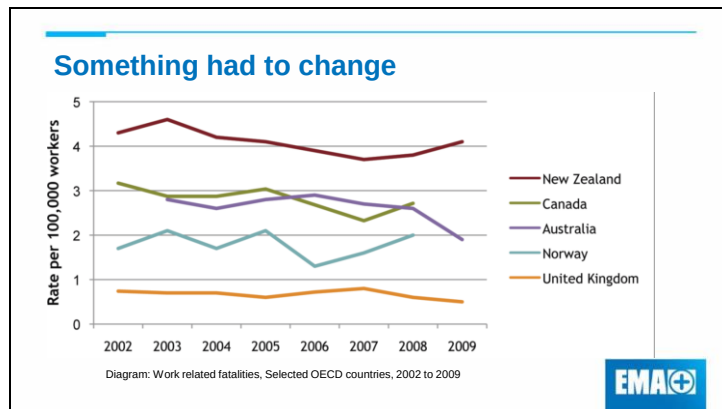
This image is a reasonable illustration of considerations of risk management in action.

The motorcycle is a hazard. The act of using this introduces a sliding scale of risk. Operating it under the conditions shown increases risk significantly. Should an accident occur under these conditions the likelihood of prosecution would be high.

We are now going to take a look at how does NZ compare to other countries.

This image is not taken here in New Zealand. It would obviously cause considerable alarm to see something like this taking place here.

What this emphasises is that different cultures have diverse levels of tolerance and expectations on personal and property safety.



Workplace fatality rates for a range of OECD countries

What this chart illustrates, despite its age, is what motivated the reforms of our OH&S legislation.

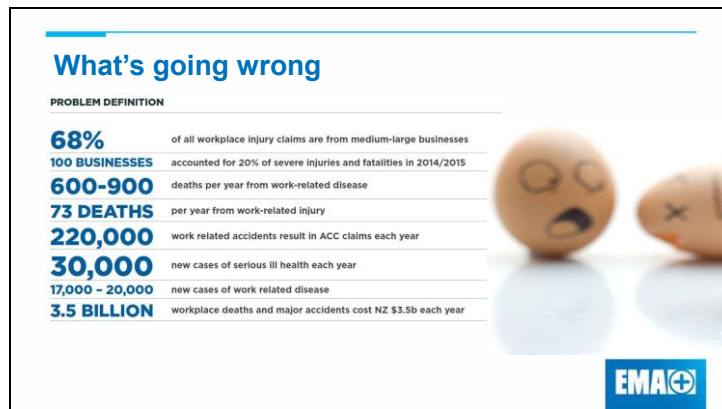
We have taken these statistics from the Independent Taskforce on Workplace Health and Safety in New Zealand.

The agenda of this taskforce was driven from the finding of the Pike River enquiry.

Taken between 2002 and 2009 these statistics compare NZ rates of workplace fatalities to other advanced OECD countries for instance Australia, Canada, UK, rate per 100,000 workers.

NZ at top with 4.2, Australia is about half of NZ at about 1.9 and UK is at 0.5 workers per 100k, so this is an indicator that NZ is not doing too well.

Why is it that New Zealand is performing so poorly? Thinking why that may be – NZ is made up of small businesses that may not have developed proper H&S strategies and don't engage in training, we have a high proportion of farming enterprises, possibly an element of the "she'll be right, number 8 wire mentality".



Workplace death and injury statistics

ACCIDENTS AND INJURY

- There are about 73 work-related fatal injuries in New Zealand every year
- Each year in New Zealand over 220,000 occupational injuries result in ACC claims. This corresponds to 12 injuries per 100 workers

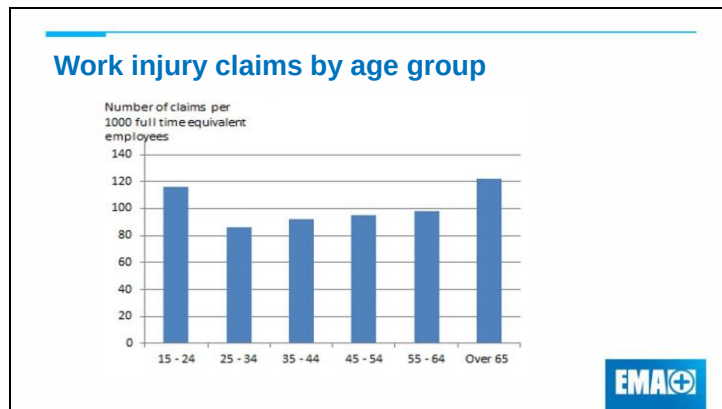
WORKPLACE DISEASE

- It is estimated that between 700 and 1,000 workers die prematurely in New Zealand as a result of work-related disease each year
- There are an estimated 17,000-20,000 new cases of work-related disease and 2,500-5,500 new severe cases of work-related disease every year

MONETARY COST TO NZ

- \$3.5 BILLION cost to New Zealand for workplace death and injury each year

While safety in the workplace is of the utmost importance we can see by these numbers failures in workplace health and wellbeing are creating significant numbers of deaths and illness. This is an area of significant concern and focus by WorkSafe.



Incident Rates of injury claims by Age Group.

This chart shows the number of claims per 1000 full time equivalents. You will notice that the 15 -24 age groups and the over 65 age groups have the greatest number of claims.

Some of the possible factors that may impact on the **younger group**:

- A need for more experience
- A need for more training
- A need for more self confidence (often linked to experience and knowledge)
- Lack of support from their peers (Apprentices needing to earn their stripes before they start getting the tradesman attention)
- Fear of saying something and being thought dumb.
- A need to realise they are not bullet proof!.

For the **older worker** it may well be.

- Fear of, or unwillingness to change
- Being trained (inducted) at a time when Health and Safety was not thought of as important
- Maybe not as quick (either physically or mentally) as they once were. Also maybe not able to admit that they are not as quick
- Not as healthy as they once were
- Waiting for retirement, head space not 100% on the job



SECTION 2: Motivation for business and people

Health and safety is not something additional to your role, it's part of your everyday business practice. Ideally we do this out of genuine desire to ensure our own, and the wellness and safety of others is a paramount priority. We will see in this section we are also bound by laws that ensure businesses follow best practice principles.

The Health in Safety in Employment Act 1992 (The old legislation) described the working arrangement as Employer – Employee and Principal – Contractor.

The Health and Safety at Work Act has replaced this with:

- PCBU (Person Conducting a Business or Undertaking)
- Worker and Others
- Officer

Health and Safety at Work Act (HSWA)

Enacted in 2015, and in effect from 4th April 2016, the purpose of this Act is to provide a balanced framework to secure the health and safety of workers and workplaces. The Act imposes duties on organisations, those who control workplaces, workers and others in workplaces to ensure the prevention of harm to workers, and those who can be affected by work.

The clear intent of the Health and Safety at Work Act is the principle that workers and other persons should be given the highest level of protection against harm to their health, safety, and welfare from hazards and risks arising from work or from specified types of plant in workplaces.



Other pieces of NZ Legislation we must we aware of include:

Health and Safety Regulations: The Health and Safety Regulations, supported with information and guidance from WorkSafe New Zealand and industry, are intended to support businesses (particularly small businesses) to help them understand what they need to do to comply with the general duties of the Health and Safety at Work Act. The Health and Safety at Work Regulations describe some of the requirements which apply to specific work situations. The Regulations are enforceable, and breaches may result in prosecution and fines. Compliance with regulations is mandatory.

Accident Compensation Act 2001: The Accident Compensation Act defines the law related to injuries sustained in accidents wherever they occur, including accidents in the workplace. In respect of the workplace, the emphasis of the Act is on eligibility for compensation, rates of accident compensation, and on recovery and return to work of injured workers. Accident prevention receives attention and support from the Act mainly through the application of loadings and discounts to the employers' premium rates (known as levies).

Employment Relations Act 2000 (ERA): This Act is focused on the nature of the relationship between workers and their employer, unions and their members, and the overall employment relations climate in the workplace.

Hazardous Substances and New Organisms Act 1996 (HASNO): The purpose of this Act is to protect the environment, and the health and safety of people and communities, by preventing or managing the adverse effects of hazardous substances and new organisms.



Why Change? What's the problem?

The Royal Commission and the Independent Taskforce identified systemic failures:

- Confusing legislation which was poorly implemented
- An ineffective regulator
- Inadequate leadership
- Poor worker engagement and participation
- Workforce shortcomings- both capacity and capability
- Hidden occupational health
- A risk tolerant culture



So what's been the problem?

The Royal Commission and the Independent Taskforce set up following the Pike River Coal Mine tragedy identified systemic failures in our national approach to Occupational Health and Safety:

- Confusing legislation which was poorly implemented
- An ineffective regulator
- Inadequate leadership
- Poor worker engagement and participation
- Workforce shortcomings- both capacity and capability
- Hidden occupational health
- A risk tolerant culture



What is needed for the new era?

- Confusing legislation which was poorly implemented
- An ineffective regulator
- Inadequate leadership
- Poor worker engagement and participation
- Workforce shortcomings - both capacity and capability
- Hidden occupational health
- A risk tolerant culture



So what needed to change?

- Good, workable law
- Strong, visible leadership
- An effective, well resourced and stand -alone regulator
- Robust level of workforce capability
- Genuine and effective worker participation
- Incentives that are effective levers for good practice
- Occupational health taken seriously

HSWA is a new way of thinking

- Ensures **everyone** has a role to play
- Makes everyone's **responsibilities** clear
- Focuses on **risk management**
- Requires those who create the risk to **control the risk**
- Requirement to **engage with workers** and enable them to **participate in an ongoing basis**
- **Allows flexibility** in managing health and safety risks



New Zealand Legislation

The Act's key emphasis is on everyone in the workplace being responsible for health and safety and works to focus effort on what matters, based on business risk, control and size:

- **It reinforces proportionality** – what a business needs to do depends on its level of risk and what it can control
- **It shifts from hazard spotting to managing critical risks** – actions that reduce workplace harm rather than trivial hazards
- **It introduces the “reasonably practicable” concept** – focusing attention on what's reasonable for a business to do. This is a new qualifier definition of “so far as reasonably practicable” to replace “all practicable steps” used in the HASE Act
- **It changes the focus from the physical workplace to the conduct of work** – what the business actually does and so what it can control
- **It supports more effective worker engagement and participation** – promoting flexibility to suit business size and need

The new law is supported by a range of regulations, some being applicable to every business, i.e. worker engagement and other are more industry specific, i.e. mining regulations. A full copy of the Act and Regulations can be seen online at www.legislation.govt.nz

The Role Of The Regulator – WorkSafe NZ

WorkSafe works closely with PCBUs, workers and others to:

- **Educate** them about their workplace health and safety responsibilities.
- **Engage** them in making changes that reduce the chances of harm.
- **Enforce** workplace health and safety legislation.



The Role Of The Regulator – WorkSafe NZ

WorkSafe is New Zealand's workplace health and safety regulator. WorkSafe's objective, as laid out in the WorkSafe New Zealand Act 2013, is to "promote and contribute to securing the health and safety of workers and workplaces" by embedding good workplace health and safety practices.

WorkSafe are also the regulator for electricity and gas safety in the workplace and home.

WorkSafe is charged by the Government with leading New Zealand to achieve safer outcomes in the workplace and by using education, engagement and enforcement to do that. The Government has set a target of an at least 25 percent reduction in workplace deaths and serious injuries by 2020 and WorkSafe have a major role to play in bringing the country to achieving that target.



Motivation for Business

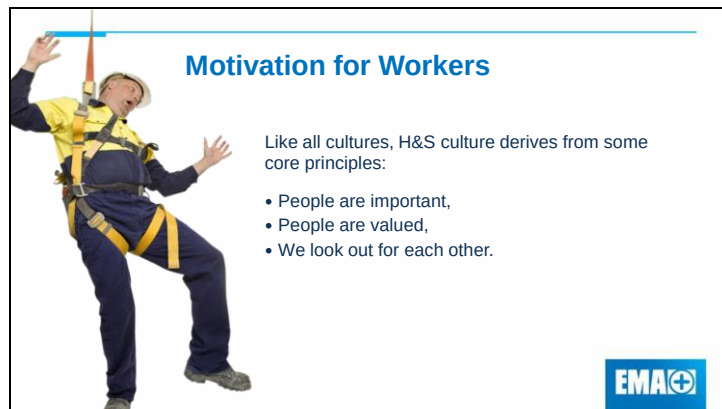
- To ensure people go home uninjured and healthy tonight. (Zero Harm!)
- Legislative Requirements. (Potential Fines)
- Reduction in ACC premiums and other costs.
- Brand or reputation damage.
- Actively being seen as a good employer.
- Overseas corporate reporting requirements



Motivation for Business

This is probably the most apparent thing to employees that business are invested into providing a safe workplace, this does include...

- To ensure people go home uninjured and healthy tonight. (Zero Harm!)
- Legislative Requirements. (Potential Fines)
- Reduction in ACC premiums and other costs (WSMP (Workplace Systems and Management performance) for larger business, New Workplace Discount Programme recently introduced for smaller businesses)
- Brand or reputation damage.
- Actively being seen as a good employer.
- Overseas corporate reporting requirements



Motivation for Employees

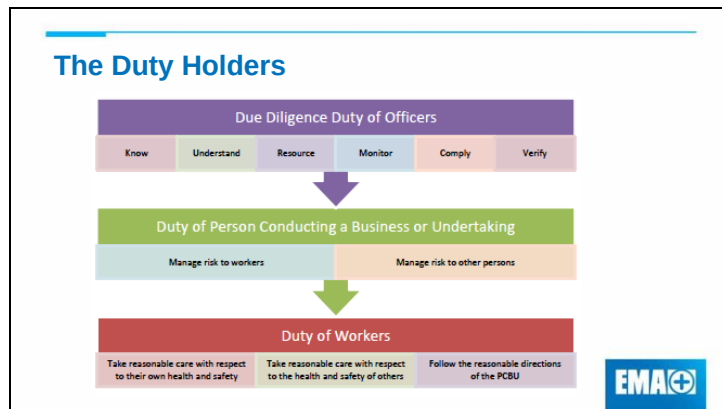
Like all cultures, H&S culture derives from some core principles:

- People are important,
- People are valued,
- We look out for each other. (There are some legislative requirements around this we will discuss later)

The Pike River tragedy makes us realise that not only is it personal harm or death that may evolve, but also the loss of a business, loss of jobs, loss of opportunity to learn, loss and suffering of loved ones and loss to a community of someone who can contribute to the community wellbeing.

We must understand that we, our workmates, family and friends are important, our active involvement in H&S is valuable. This would include, making suggestions for safety improvement's, reporting hazards, accidents and as importantly near miss incidents.

Increasingly people involved in workplace OH&S systems management within the workplace look at the personal or career opportunities this sector provides. Further educations opportunities beyond H&S Representative training includes National Certificates in OHS (Level 3 and Level 4) and the Diploma in OHS Management (Level 6)



Health and Safety Duties

Duty holders have health and safety legal responsibilities under the Health and Safety at Work Act 2015.

Duties relates to three groups recognised as the **PCBU**, **Officers** and **Workers**. Each group carries with it differing responsibilities and personal liability. The key principles relating to these duties are as follows –

The Management of Risks

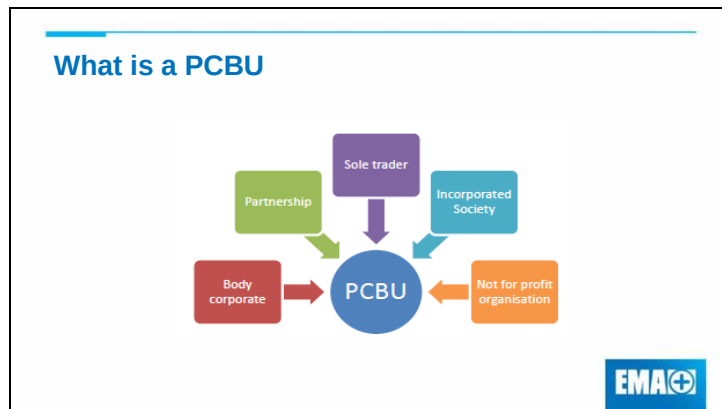
The Act requires the person to eliminate risks to health and safety, so far as is reasonably practicable; and, if it is not reasonably practicable to eliminate risks to health and safety, to minimise those risks so far as is reasonably practicable.

Duties Are Not Transferable:

A duty imposed on a person by or under the Act may not be transferred to another person. It is illegal to seek insurance for health and safety duties. In addition, a person cannot seek indemnity, waivers or contract out their duties and obligations under the Act. Insurance can be sought for court ordered reparation and court/legal costs.

A Person May Have More Than 1 Duty:

A person may have more than 1 duty imposed on the person by or under the Act if the person belongs to more than 1 class of duty holder. For example, a self-employed sole trader could be the PCBU, an Officer and a Worker of the PCBU.



A PCBU is a business or undertaking rather than an individual person. A person is a PCBU if they are a sole trader or a self-employed person.

Examples of a PCBU include:

- A retail business
- A wholesale business
- A manufacturing business
- An import business
- An owner-driver
- A franchisor and the franchisee
- A self-employed person or sole trader
- A partnership
- A government department or agency
- A local council
- A school
- A not-for-profit organisation

A business is an enterprise usually conducted with a view to making a profit. An undertaking is usually not profit-making or commercial in nature.

The Regulator believes that PCBUs are in the best position to manage risks to work health and safety as they are the ones carrying out the business or undertaking. This is why the PCBU has the primary duty under the new Act. Each PCBU has their own primary duties and also a shared duty to the other PCBUs where there are multiple parties in a supply or contract chain. All the PCBUs in the supply or contract chain need to work together when duties are overlapping.



A PCBU (business or undertaking) is governed by individuals who, through their decision making, influence the specific activities that will in turn ensure the success or failure of health and safety initiatives and whether the PCBU is complying with its own duty.

These individuals make important decisions on the financial, planning and resources that are available for health and safety and the policies that support the PCBU to comply. These individuals also strongly influence the culture of the PCBU and accountabilities within it.

These individuals are Officers and the new Act requires that they must exercise due diligence to ensure that the PCBU complies with its duties.

An officer is:

- Any person occupying the position of a director of a company
- Any partner of a partnership
- Any person occupying a position that is comparable with that of a director of a company
- Any other person who makes decisions that affect the whole, or a substantial part, of the business

Certain officers are exempt from prosecution if they fail in their due diligence duty, including:

- Volunteers.
- Community board members, whether appointed or elected under the Local Electoral Act 2001
- Elected members of local authorities (councillors) under the Local Electoral Act 2001
- Members of school boards of trustees, whether appointed or elected under the Local Electoral Act 2001
- Elected members of local boards under the Local Electoral Act 2001



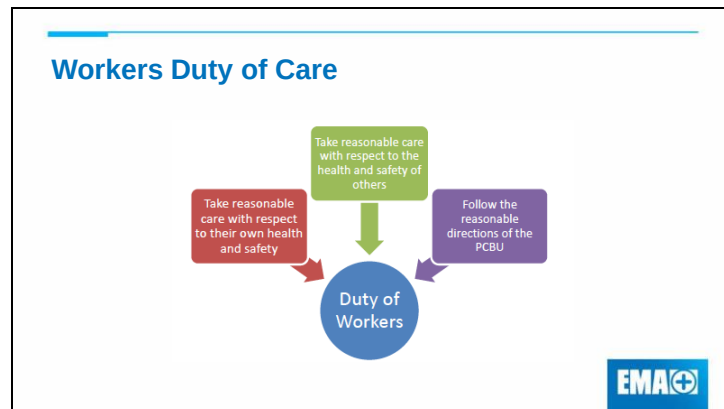
Workplaces and working relationships have changed dramatically during the course of the last 30 years. New Zealand has seen a shift in workplace arrangements from employer controlled workplaces, where all workers were employed by the employer, to workplaces with employees from multiple employers and employees from on-hire labour companies present at the worksite. Often, the senior managers of the employer are not present at the worksite and the employees are required to self-manage their health and safety procedures and practices.

The new Health and Safety at Work Act 2015 reflects the varied working arrangements by talking about workers instead of employees.

A worker carries out paid or unpaid work in any capacity for a PCBU. A worker may be:

- An employee; or
- A contractor or subcontractor; or
- An employee of a contractor or subcontractor; or
- An employee of a labour hire company who has been assigned to work in the business or undertaking; or
- An outworker (including a homeworker); or
- An apprentice or a trainee; or
- A person gaining work experience or undertaking a work trial; or
- A volunteer worker.

In addition, an individual carrying out business as a sole trader or self-employed person would also be a worker for their PCBU while they are carrying out the work for their PCBU.



Everyone who goes to work deserves to come home healthy and safe. Workers are entitled to work in environments where the risks to their health and safety are properly controlled. The purpose of Health and Safety at Work Act is to protect workers against harm arising from work by making sure everyone plays their part. The best health and safety outcomes are achieved when everyone works together to manage risks.

So, while the primary responsibility for work health and safety lies with the business, workers must take reasonable care of their own health and safety and ensure that their actions don't cause harm to themselves or others.

While at work, a worker must:

- Take reasonable care for his or her own health and safety
- Take reasonable care that his or her acts or omissions do not adversely affect the health and safety of other persons
- Comply, as far as the worker is reasonably able, with any reasonable instruction that is given by the PCBU to allow the PCBU to comply with the Act or regulations
- Co-operate with any reasonable policy or procedure of the PCBU relating to health or safety at the workplace that has been notified to workers.



Section 4: Engagement, Participation and Representation

The Health and Safety at Work Act 2015 sets out overarching PCBU duties for involving workers in workplace health and safety – engagement, participation and representation:

- The PCBU must engage with workers who carry out work for the business or undertaking and with workers who are directly affected, or are likely to be affected, by a health and safety matter of the PCBU; and
- If the PCBU and the workers have agreed to procedures for engagement, the engagement must be in accordance with those procedures.

Nature of Engagement

Workers need to be given the opportunity to engage with the PCBU in a meaningful way.

- That relevant information about the matter be shared with workers in a timely manner
- Workers be given a reasonable opportunity to express their views, raise issues and contribute to the decision making process
- Views of worker must be taken into account by PCBU and outcomes advised to worker
- Workers can request HSR representation

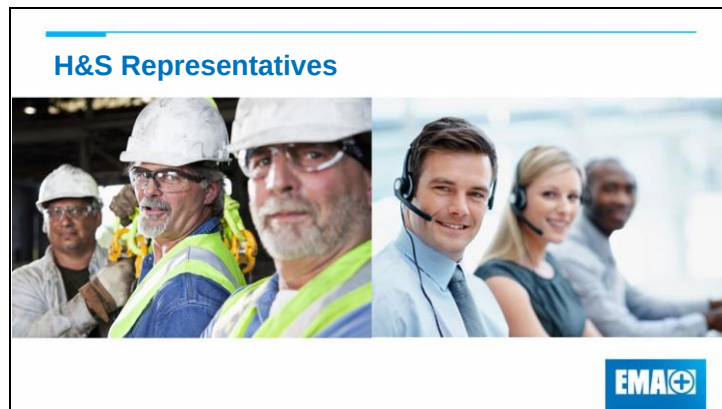


Typical Employees Responsibilities

Looking at the image we are demonstrating that different industries are applicable whether office or manufacturing as an example, each will have similar roles and each will have specific responsibilities related to their environment.

Each employee is expected to help maintain a safe and healthy workplace through:

- Following all safe work procedures, rules and instructions – give feedback if things don't look right (common sense)
- Properly using all safety equipment and clothing provided
- Reporting early any pain or discomfort (DPI) – increasingly common that early indicators must be reported.
- Taking an active role in the company's treatment and rehabilitation plan, for their 'early and durable return to work
- Reporting all incidents, injuries and hazards to the appropriate person
- Understand health and safety rules and follow them



Health and Safety Representatives

Health and Safety Representatives (HSRs) are a well-established example of worker participation and can also support worker engagement. HSRs provide workers with a formal, visible way to have a say in work health and safety.

HSRs also provide:

- a voice for workers who might not otherwise speak up about work health and safety matters
- a mechanism for workers to speak to management about work health and safety matters
- help in situations where it is not practical for a business to engage one-on-one with its entire workforce

While HSRs aren't necessarily experts in health and safety, trained HSRs are knowledgeable about health and safety matters, how the Health and Safety at Work Act 2015 (HSWA) works, and are aware of the rights and responsibilities of everyone in the workplace.

Trained HSRs also have powers that enable them to take action on behalf of their work group.

Functions and powers: HSRs have a number of functions and powers such as representing workers on health and safety matters, making recommendations on health and safety, investigating complaints and risks to worker health and safety, monitoring health and safety measures taken by the business, and giving feedback to the business about the business meeting its duty.

“Accredited” Health and Safety Representatives – NZQA Unit 29315

While not a requirement, should a HSR achieve NZQA Unit 29315 you will be able to issue a Provisional Improvement Notice (PIN) or issue orders to cease unsafe work.



A Culture of Safety

A positive health and safety culture can support engagement and participation practices. When a business talks about its health and safety culture, it means ‘how we do things around here’ and the beliefs and practices everyone shares. The culture reflects what’s important in that workplace.

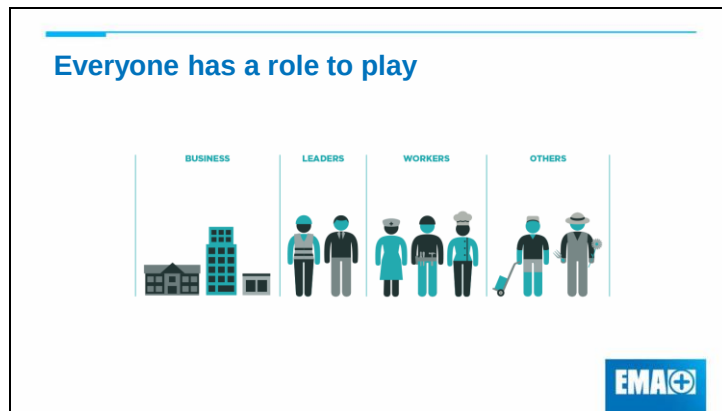
In a workplace with a positive health and safety culture:

- Leaders and managers encourage worker participation on health and safety matters
- Everyone at the workplace takes health and safety seriously
- There are many opportunities for workers to have their say
- Workers believe that it is in their best interest to participate
- Workers know that their concerns will be listened to and responded to
- Workers trust managers and managers trust workers
- Managers are approachable.



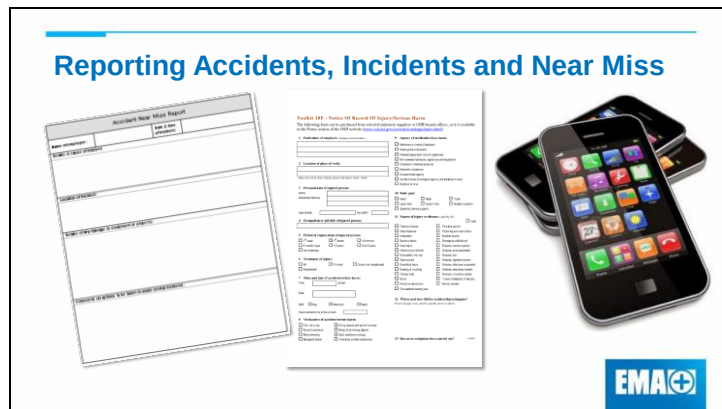
A Health and safety system has multiple elements:

- **Management leadership** – how we value safety and setting expectations and accountability.
- **Risk and hazard management** – identification, risk assessments and management of all actual and potential hazards.
- **Emergency procedures** – planning, training and testing (drills) for potential emergencies that may arise in the workplace.
- **Training and supervision** – supporting workers to work safely.
- **Incident and accident reporting** – reporting and investigation of incident and accident events to identify cause of harm and implement remedial actions to prevent similar events happening again.
- **Injury management** – processes for ensuring that injured persons are properly cared for.
- **Worker engagement and participation** – involving the workers who are exposed to the risk involved.
- **Performance and measurement** – knowing if safety is effective.



Everyone has a role to play

While workers in a business have different roles, everyone is part of the overall team. Every individual contribution supports the safety and success of the whole business. Everyone has a role to play.



Reporting Accidents, Incidents and Near Miss

Everyone has an obligation to report any hazards, near misses, accidents, incidents and or early onset of work related pain.

Every business will have their own system for recording. Some may be paper based as shown here, or increasingly, businesses are using online and application based systems allowing instant feedback from workstations, smartphones and internet connected devices.

Duty to Notify

Section 56:
Duty to notify notifiable event

A PCBU must, as soon as possible after becoming aware that a notifiable event arising out of the conduct of the business or undertaking has occurred, ensure that the regulator is notified of the event.

“By the fastest means”



Duty to notify notifiable event

A PCBU must, as soon as possible after becoming aware that a notifiable event arising out of the conduct of the business or undertaking has occurred, ensure that the regulator is notified of the event. **“By the fastest means”**

- Be sure to preserve site
- Be sure to keep records

This could be by phone or by email. Fines for contravening range up to \$50,000.

For full details refer to the HSWA sections 55-57

Meaning of notifiable event

a notifiable event means any of the following events that arise from work:

- (a) the death of a person; or
- (b) a notifiable injury or illness; or
- (c) a notifiable incident.



NOTIFIABLE EVENT

a notifiable event means any of the following events that arise from work:

- (a) the death of a person; or
- (b) a **notifiable injury or illness**; or
- (c) a **notifiable incident**.

For full definitions of these refer to sections 25 of the Act.

a **notifiable injury or illness**, in relation to a person, means in layman's terms anything you would need to send someone to an emergency room for treatment for such as burns, spinal and head injury, illness or infection. For a full list of definitions refer to section 23 of the Act.

a **notifiable incident** means an unplanned or uncontrolled incident in relation to a workplace that exposes a worker or any other person to a serious risk to that person's health or safety arising from an immediate or imminent exposure to...
(Refer to section 24 of the Act for list of examples)



Safety Ethics: Scenario 1

Looking after your work colleagues

How many of us will walk past a dangerous activity like this and take no action?



Safety Ethics – Mario from Hamilton

Some statistics show 80% of people will walk past a dangerous activity (or do nothing about an unsafe behaviour). From studies it appears that people are more likely to do nothing if there is a large group of people around whereas if they are by themselves and an incident occurs they are more likely to take responsibility and do something.

Here is a picture of Mario, the property maintenance person for a group of flats in central Hamilton:

- Mario is a grumpy person and always tells people to “sod off”, nobody likes dealing with him.
- Residents in the Flats have repeatedly reported his risky and bad behaviour to the property managers but have had no response from the managers.
- Mario’s two workmates who periodically work with him have spoken to him many times but can no longer be bothered saying anything to him because he ignores them.
- Later that day Mario ended up in hospital with a broken arm and leg after the stepladder collapsed beneath him.

What could have been done to prevent this?



Safety Ethics

Here we have Jenny a Sales and Marketing executive in Parnell working to a tight schedule to complete work.

The company have recently let a staff member go and have not replaced them.

Jenny is working hard and has taken up a lot of the slack by working longer hours, however she is starting to suffer sore back and shoulders from the increased workload and started to take work home to try and finish her tasks. (DPI – Discomfort, Pain and Injury - replaces OOS and RSI terminology)

So as an employee how can Jenny help herself?



Employee Rights

A worker may cease, or refuse to carry out, work if the worker believes that carrying out the work would expose the worker, or any other person, to a serious risk to the worker's or other person's health or safety arising from an immediate or imminent exposure to a hazard. (Section 83)

EMA

Right of worker to cease or refuse to carry out unsafe work

(1) A worker may cease, or refuse to carry out, work if the worker believes that carrying out the work would expose the worker, or any other person, to a serious risk to the worker's or other person's health or safety arising from an immediate or imminent exposure to a hazard.

(2) A worker may continue to refuse to carry out the work if—

- (a) the worker attempts to resolve the matter with the PCBU as soon as practicable after first refusing to do the work; and
- (b) the matter is not resolved; and
- (c) the worker believes on reasonable grounds that carrying out the work would expose the worker or any other person to a serious risk to the worker's or other person's health or safety arising from an immediate or imminent exposure to a hazard.

(3) Without limiting subsection (2)(c), **reasonable grounds** exist if a health and safety representative has advised the worker that carrying out the work would expose the worker or any other person to a serious risk to the worker's or other person's health or safety arising from an immediate or imminent exposure to a hazard.

(4) A worker who ceases work under subsection (1) must, as soon as practicable, notify the PCBU that the worker has ceased work.

(5) Subsection (1) does not authorise a worker to refuse to do work that, because of its nature, inherently or usually carries an understood risk to the worker's health and safety, unless that risk has materially increased beyond the understood risk.

(6) To avoid doubt, nothing in this section limits or affects an employee's right to refuse to do work under any other enactment or the general law. (refer to Section 83)



Personal Protective Equipment (PPE)

If you are supplied with PPE then you have a responsibility to use it. You should receive training and be encouraged to help others come to terms with how and why it should be used.

- Laboratory assistant using her Personal protective equipment (PPE) and
- Homer Simpson and colleagues looking at what PPE is correct for the individual jobs they actually undertake. They also would need to be given information (training) on when and where to wear this PPE.

The key here is if it is provided use it; if it's needed for safety then request it. The long term impact of neglecting this could affect yours, or others, long term Health.



Emergency Readiness and Response

In New Zealand typical Emergency readiness and response is focused on the harm caused by:

- Fire, explosion
- Earthquake
- Flood
- Chemical Spill
- Power Outage
- Severe illness or Injury
- Violence

Each New Zealand workplace is different there may be more (or less than) emergency requirements than on this list.

Two examples could include:

- Confined Space response and
- Getting a person down who is left hanging from a harness after a fall from working at height.

Employee Roles

As an employee you may be a Fire or Building Warden in which case you probably know what to do.

Most organisations have a 6 monthly fire emergency practice and as an employee you will have certain things to do, which is essentially get out as soon as possible, not carrying anything and meet at the closest assembly point.

Significant contribution is being able to identify ways of improving any procedure either during the drill or from day to day operation.

Ideally submit your ideas in writing to Rep or Safety Committee or in absence of these to your manager.



Your Attitude to Safety

- Look after your colleagues and yourself.
- Actively participate in and contribute to a culture of Health and Safety at work and at home.
- Take every opportunity to learn about Health and Safety, understand the legislation and apply common sense to everything you do.



Your Attitude to Health and Safety

At the end of the day people are what is important! A good attitude to health and safety is to look after your own and your work colleagues' safety and health.

You will have learnt by now that workplace innovation (through your suggestions), culture and behaviour play a big part in Health and Safety. Equally your calculated risk - attitude is important to ensuring you go through life learning and undertaking the things that you enjoy.

We at EMA are here to see your and your business succeed.

The next step in your health and safety pathway could well be one of our short courses. We offer programmes from half day workshops through the Diploma in H&S.

Thank you for attending

- You will receive a follow up email soon which will include a downloadable version of todays presentation and notes in PDF format.
- If you have completed all the poll questions you will be emailed a certificate of attendance.
- If you have any questions or would like more information on further training please contact :

Joe Boyle, Phone 09 367 0996
Email: joe.boyle@ema.co.nz



Joe Boyle
EMA Health & Safety
Training Portfolio Manager



You will receive a follow up email soon which will include a downloadable version of todays presentation and notes in PDF format.

If you have completed all the poll questions you will be emailed a certificate of attendance.

If you have any questions or would like more information on further training please contact :

Joe Boyle, Phone 09 367 0996
Email: joe.boyle@ema.co.nz

Thanks to attendees

LAUNCH POLL: Feedback